

COMMITTEE ON FEDERALISM, MILITARY AFFAIRS & ELECTIONS
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1429
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 19-101, Arizona Revised Statutes, is amended to
3 read:

4 19-101. Referendum petition: circulators: violation:
5 classification

6 A. The following shall be the form for referring to the people by
7 referendum petition a measure or item, section or part of a measure
8 enacted by the legislature, or by the legislative body of an incorporated
9 city, town or county:

10 Referendum Description

11 (Insert a description of not more than two hundred words of the
12 principal provisions of the measure sought to be referred.)

13 Notice: This is only a description of the measure sought to be
14 referred prepared by the sponsor of the measure. It may not include every
15 provision contained in the measure. Before signing, make sure the title
16 and text of the measure are attached. You have the right to read or
17 examine the title and text before signing.

18 Petition for Referendum

19 To the secretary of state (or to the corresponding
20 officer for or on local, county, city or town measures):

21 We, the undersigned citizens and qualified electors of the
22 state of Arizona, respectfully order that the senate (or
23 house) bill No. _____ (or other local, county, city or town
24 measure) entitled (title of act or ordinance, and if the
25 petition is against less than the whole act or ordinance then
26 set forth here the item, section, or part, of any measure on
27 which the referendum is used), passed by the _____
28 session of the legislature of the state of Arizona, at the
29 general (or special, as the case may be) session of said
30 legislature, (or by a county, city or town legislative body)
31 shall be referred to a vote of the qualified electors of the
32 state, (county, city or town) for their approval or rejection
33 at the next regular general election (or county, city or town
34 election) and each for himself says:

35 I have personally signed this petition with my first and
36 last names. I have not signed any other petition for the same
37 measure. I am a qualified elector of the state of Arizona,
38 county of (or city or town and county of, as the case may be)

39 _____.

1 19-102.01. Initiative petitions; standard of review

2 A. Constitutional and statutory requirements for ~~statewide~~
3 initiative measures must be strictly construed and persons using the
4 initiative process must strictly comply with those constitutional and
5 statutory requirements.

6 B. The secretary of state shall make available a sample initiative
7 petition that strictly complies with the requirements of section 19-121.
8 Any committee that uses the sample initiative petition provided by the
9 secretary of state shall be presumed to have strictly complied with the
10 requirements of section 19-121.

11 Sec. 4. Section 19-118, Arizona Revised Statutes, is amended to
12 read:

13 19-118. Registered circulators; requirements; violation;
14 classification; definition

15 A. For ~~statewide~~ initiative and referendum measures ~~only~~, INCLUDING
16 MEASURES GOVERNED BY SECTIONS 19-141, 19-142 AND 19-143, all circulators
17 who are not residents of this state and all paid circulators must register
18 as circulators with the secretary of state before circulating petitions
19 pursuant to this title. The committee that is circulating the petition
20 shall collect and submit the completed registration applications to the
21 secretary of state. The secretary of state shall establish in the
22 instructions and procedures manual issued pursuant to section 16-452 a
23 procedure for registering circulators, including circulator registration
24 applications, and shall publish on a website maintained by the secretary
25 of state all information regarding circulators that is required pursuant
26 to this section. The secretary of state OR OTHER FILING OFFICER, AS
27 APPLICABLE, shall disqualify all signatures collected by a circulator who
28 fails to register pursuant to this subsection as provided for in section
29 19-121.01, subsection A.

30 B. The circulator registration application required by subsection A
31 of this section shall require the following:

32 1. The circulator's full name, residence address, telephone number
33 and email address.

34 2. The initiative or referendum petition on which the circulator
35 will gather signatures.

36 3. A statement that the circulator consents to the jurisdiction of
37 the courts of this state in resolving any disputes concerning the
38 circulation of petitions by that circulator.

39 4. The address of the committee in this state for which the
40 circulator is gathering signatures and at which the circulator will accept
41 service of process related to disputes concerning circulation of that
42 circulator's petitions. Service of process is effected under this section
43 by delivering a copy of the subpoena to that person individually, by
44 leaving a copy of the subpoena with a person of suitable age or by mailing
45 a copy of the subpoena to the committee by certified mail to the address
46 provided.

1 5. An affidavit from the registered circulator that is signed by
2 the circulator before a notary public and that includes the following
3 declaration:

4 I, _____ (print name) _____, under penalty of a class 1
5 misdemeanor, acknowledge that I am eligible to register as a
6 circulator in the state of Arizona, that all of the
7 information provided is correct to the best of my knowledge
8 and that I have read and understand Arizona election laws
9 applicable to the collection of signatures for ~~a statewide~~ AN
10 initiative or referendum.

11 C. Within five business days after submission and review of a
12 complete and correct circulator registration application that complies
13 with this section, the secretary of state shall register and assign a
14 circulator registration number to the circulator.

15 D. A person may not register as a circulator pursuant to this
16 section if the person:

17 1. Has had a civil or criminal penalty imposed for a violation of
18 title 16 or this title within the immediately preceding five years.

19 2. Has been convicted of treason or a felony and has not been
20 restored to civil rights as described in section 16-101, subsection A,
21 paragraph 5.

22 3. Has been convicted of any criminal offense involving fraud,
23 forgery or identity theft.

24 E. If a registered circulator is properly served with a subpoena to
25 provide evidence in an action regarding circulation of petitions and fails
26 to appear or produce documents as provided for in the subpoena, all
27 signatures collected by that circulator are deemed invalid. The party
28 serving the subpoena may request an order from the court directing the
29 secretary of state to remove any signatures collected by the circulator as
30 provided for in section 19-121.01, subsection A.

31 F. Any person may challenge the lawful registration of circulators
32 in the superior court of the county in which the circulator is registered.
33 A challenge may not be commenced more than ten business days after the
34 date that the secretary of state's office has received, processed and made
35 available all final petition sheets individually numbered. The person
36 challenging signatures may amend that complaint after the secretary of
37 state has removed signatures and signature sheets as prescribed in section
38 19-121.01. An action pursuant to this section shall be advanced on the
39 calendar and decided by the court as soon as possible. Either party may
40 appeal to the supreme court within five calendar days after entry of
41 judgment. The prevailing party in an action to challenge the registration
42 of a circulator under this section is entitled to reasonable attorney
43 fees.

44 G. The removal or disqualification of any one or more circulators
45 does not invalidate the random sample of signatures made pursuant to
46 section 19-121.01, and the secretary of state shall not be required to
47 conduct any additional random sampling of signatures.

1 H. A person who knowingly omits or misrepresents information or
2 provides false information on a circulator registration application or who
3 registers in violation of this section is guilty of a class 1 misdemeanor.

4 I. For the purposes of this title, "paid circulator":

5 1. Means a natural person who receives monetary or other
6 compensation for obtaining signatures on ~~a statewide~~ AN initiative or
7 referendum petition or for circulating ~~statewide~~ initiative or referendum
8 petitions for signatures.

9 2. Does not include a paid employee of any political committee
10 organized pursuant to title 16, chapter 6, unless that employee has or
11 will obtain two hundred or more signatures on an initiative, referendum or
12 recall petition in an election cycle.

13 Sec. 5. Section 19-118.01, Arizona Revised Statutes, is amended to
14 read:

15 19-118.01. Signature collection; prohibited payments;
16 violation; classification

17 A. A person shall not pay or receive money or any other thing of
18 value based on the number of signatures collected on ~~a statewide~~ AN
19 initiative or referendum petition. Signatures that are obtained by a paid
20 circulator who violates this section are void and shall not be counted in
21 determining the legal sufficiency of the petition.

22 B. A violation of this section is a class 1 misdemeanor.

23 Sec. 6. Section 19-141, Arizona Revised Statutes, is amended to
24 read:

25 19-141. Initiative and referendum in counties, cities and
26 towns

27 A. This chapter applies to the legislation of cities, towns and
28 counties, except as specifically provided to the contrary in this
29 article. The duties required of the secretary of state as to state
30 legislation shall be performed in connection with such legislation by the
31 city or town clerk, county officer in charge of elections or person
32 performing the duties ~~as such~~ OF THAT OFFICE. The duties required of the
33 governor shall be performed by the mayor or the chairman of the board of
34 supervisors, the duties required of the attorney general shall be
35 performed by the city, town or county attorney, and the printing and
36 binding of measures and arguments shall be paid for by the city, town or
37 county in like manner as payment is provided for by the state with respect
38 to state legislation. The provisions of section 19-124 with respect to
39 the legislative council analysis do not apply in connection with
40 initiatives and referenda in cities, towns and counties. The printing
41 shall be done in the same manner as other municipal or county printing is
42 done.

43 B. Distribution of pamphlets shall be made to every household
44 containing a registered voter in the city, town or county by the city or
45 town clerk or by the county officer in charge of elections by mail before
46 the earliest date for receipt by registered voters of any requested early
47 ballot for the election at which the measures are to be voted on. If the

1 pamphlet is not mailed before the earliest date for receipt of a requested
2 early ballot, the officer in charge of elections shall provide a notice
3 with the early ballots stating when the pamphlets will be mailed and where
4 and when the pamphlets may be accessed or viewed. Any contract for
5 pamphlet publication or mailing, or both, shall provide for the contractor
6 to pay a penalty for each day of mailing that occurs on or after the
7 earliest date for receipt of requested early ballots. The penalty shall
8 be ~~one-cent~~ \$.01 for each household with a registered voter for each day
9 of late mailing, and the monies shall be paid to the office of the officer
10 in charge of elections. Pamphlets shall not be mailed or carried less
11 than ten days before the election at which the measures are to be voted
12 ~~upon~~ ON.

13 C. Arguments supporting or opposing municipal or county initiative
14 and referendum measures shall be filed with the city or town clerk or the
15 county officer in charge of elections not less than ninety days before the
16 election at which they are to be voted ~~upon~~ ON.

17 D. The procedure with respect to municipal and county legislation
18 shall be as nearly as practicable the same as the procedure relating to
19 initiative and referendum provided for the state at large, except the
20 procedure for verifying signatures on initiative or referendum petitions
21 may be established by a city or town by charter or ordinance. ANY
22 MUNICIPAL OR COUNTY INITIATIVE OR REFERENDUM MEASURE THAT PROPOSES A
23 MANDATORY EXPENDITURE, ESTABLISHES A FUND FOR ANY SPECIFIC PURPOSE OR
24 ALLOCATES FUNDING FOR ANY SPECIFIC PURPOSE MUST PROVIDE A DISCLOSURE OF
25 THE EXPENDITURE, FUND OR ALLOCATION AND THE SOURCE OF INCREASED REVENUES
26 SUFFICIENT TO COVER THE ENTIRE IMMEDIATE AND FUTURE COSTS OF THE
27 PROPOSAL. THIS DISCLOSURE SHALL BE PROVIDED IN THE INITIATIVE OR
28 REFERENDUM DESCRIPTION PRESCRIBED BY SECTION 19-101 OR 19-102.

29 E. References in this section to duties to be performed by city or
30 town officers apply only with respect to municipal legislation, and
31 references to duties to be performed by county officers apply only with
32 respect to county legislation.

33 F. The duties required of the county recorder with respect to state
34 legislation shall also be performed by the county recorder with respect to
35 municipal or county legislation."

36 Amend title to conform

And, as so amended, it do pass

JOHN GILLETTE
CHAIRMAN

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